



NON-DISCLOSURE & INDEPENDENT CONTRACTOR AGREEMENT (NDA)

This Agreement is made on ,_____ between:

Plush Intentions LLC ("Company") and
_____("Contractor").

Together, the Company and Contractor are the "Parties."

1. Purpose

The Contractor may receive access to confidential, proprietary, and sensitive information while performing services for the Company. This Agreement protects that information and establishes the Contractor's obligations as an independent service provider.

2. Definition of Confidential Information

"Confidential Information" includes, without limitation:

- Client names, addresses, and contact information
- Job details, instructions, pricing, and communications
- Business processes, internal procedures, and operational methods
- Financial information
- System access, credentials, software, and tools
- Vendor relationships, business strategies, and training materials
- Any information reasonably understood to be confidential

Confidential Information does not include information that is publicly available through no fault of the Contractor.

3. Contractor Obligations The Contractor agrees to:

- Maintain strict confidentiality of all Confidential Information
- Not disclose, copy, distribute, or misuse Confidential Information
- Use Confidential Information solely for performing services for the Company
- Immediately return or destroy all Confidential Information upon request
- Report any suspected breach or unauthorized disclosure

These obligations survive termination of this Agreement.

4. Non-Compete & Non-Circumvention

For the duration of the Contractor's engagement and for two (2) years after termination, the Contractor agrees not to:

- Contact, solicit, or work directly for any Company client
- Circumvent the Company to obtain work or compensation
- Provide similar services to any competing business within the Company's service area
- Use Company information to start, support, or assist a competing business
- Divert or attempt to divert Company clients, leads, or opportunities

This section applies regardless of whether the Contractor performed work for the specific client.

5. Independent Contractor Status

The Contractor is an independent contractor, not an employee. Nothing in this Agreement creates an employment relationship.

The Contractor is solely responsible for:

- Their own taxes
- Their own business expenses
- Their own insurance
- Their own tools and equipment
- Their own vehicle and transportation
- Their own scheduling and work methods

The Company does not provide benefits, workers' compensation, or reimbursement for expenses.

6. Tools, Vehicle, and Insurance Requirements The Contractor must maintain, at all times:

- Their own tools and equipment required to perform services
- A reliable vehicle suitable for transporting tools and materials
- Valid auto insurance meeting state minimum requirements
- General liability insurance if required by state law or Company policy

If the Contractor employs or subcontracts others:

- The Contractor must maintain workers' compensation insurance as required by state law
- The Contractor is fully responsible for the actions, conduct, and insurance of their subcontractors

Failure to maintain required insurance is grounds for immediate termination. ---

7. Legal Disclosure Exception

The Contractor may disclose Confidential Information only when required by law, subpoena, or court order. The Contractor must notify the Company before disclosure unless legally prohibited.

8. Intellectual Property

All materials, documents, processes, training, and systems provided by the Company remain the exclusive property of the Company. The Contractor receives no ownership rights.

9. Term & Termination

This Agreement begins on the date above and remains in effect:

- During the Contractor’s engagement, and
- For two (2) years after termination regarding confidentiality, non-compete, and non-circumvention obligations.

The Company may terminate the Contractor’s engagement at any time for any reason. ---

10. Remedies

A breach of this Agreement may cause irreparable harm. The Company may seek:

- Injunctive relief
- Damages
- Attorneys’ fees
- Any other remedies available under law

The Contractor agrees that monetary damages alone may be insufficient. ---

11. Governing Law

This Agreement is governed by the laws of the State of Ohio, without regard to conflict-of-law principles.

12. Signatures

Company Representative:

Name: _____ Signature: _____ Date: _____

Contractor:

Name: _____ Signature: _____ Date: _____